As has been said, prior to the adoption of the Fourteenth Amendment, there had been no constitutional definition of citizenship of the United States, or of the rights, privileges, and immunities secured thereby or springing therefrom. The phrase "privileges and immunities" was used in Article IV, § 2 of the Constitution, which decrees that "The Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States."

At one time it was thought that this section recognized a group of rights which, according to the jurisprudence of the day, were classed as "natural rights"; and that the purpose of the section was to create rights of citizens of the United States by guaranteeing the citizens of every State the recognition of this group of rights by every other State. Such was the view of Justice Washington.[17]

While this description of the civil rights of the citizens of the States has been quoted with approval,[18] it has come to be the settled view that Article IV, § 2, does not import that a citizen of one State carries with him into another fundamental privileges and immunities which come to him necessarily by the mere fact of his citizenship in the State first mentioned, but, on the contrary, that in any State every citizen of any other State is to have the same privileges and immunities which the citizens of that State enjoy. The section, in effect, prevents a State from discriminating against citizens of other States in favor of its own.[19]

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[17] *Corfield* v. *Coryell,* 4 Wash. C. C. 371; 6 Fed. Cas. No. 3230.

[18] *The Slaughter-House Cases,* 16 Wall. 36, 76; *Maxwell* v. *Dow,* 176 U. S. 581, 588, 591; *Canadian Northern Ry. Co.* v. *Eggen,* 252 U. S. 553, 560.

[19] *Downham* v. *Alexandria,* 10 Wall. 173; *Chambers* v. *Baltimore & Ohio R. Co.,* 207 U. S. 142; *La Tourette* v. *McMaster,* 248 U. S. 465; *Chalker* v. *Birmingham & N. W. Ry. Co.,* 249 U. S. 522;